

New connection to be processed on landlord NOC and other formalities

High Court of Judicature at Allahabad · Division Bench · 4 August 2010 · WRIT - C No. 45364 of 2010 · **Writ disposed; process application on landlord NOC and formalities.**

HEADNOTE

A Division Bench disposed of a mandamus for a new electricity connection after the licensee withheld processing for want of a landlord's no-objection certificate under the Electricity Supply Code, 2005. The petitioner undertook to file that certificate. The Court directed that if the petitioner submits the landlord's NOC and completes all other formalities, the application shall be processed and appropriate action taken expeditiously in accordance with law.

FACTUAL SUMMARY

M/s Stock Holding Corporation of India Ltd. sought a mandamus directing U.P. Power Corporation Ltd. to provide electricity at premises No. 188A/255 C.L. Plaza, Meerapur, Atarsuiya, Allahabad. It had applied for a connection and gave a fresh application on 30/31 July 2010. The licensee's counsel said the application was not being processed for want of a landlord's no-objection certificate, which the Electricity Supply Code, 2005 required. The petitioner's counsel said the petitioner would file that certificate.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

processing-new-connection-application

HOLDING

Where a new-connection application was not being processed for want of a landlord's no-objection certificate under the Electricity Supply Code, 2005, and the applicant undertook to file that certificate, the writ was disposed of with a direction that if the applicant submits the landlord's NOC and completes all other formalities, the application shall be processed and appropriate action taken expeditiously in accordance with law. ¶ 1

FLAG order invokes Electricity Supply Code, 2005 generally for landlord NOC; no clause number

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A NEW-CONNECTION APPLICATION MUST BE PROCESSED WITHOUT A LANDLORD NOC

Petitioner undertook to file the landlord's NOC; the Court did not rule on the licensee's construction of the Supply Code or on entitlement to a connection. ¶ 1